

intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Where a party has failed to produce documents duly noticed in a notice of deposition, the aggrieved party may bring a motion to compel the same. CCP § 2025.450(a). If a motion under subdivision (a) is granted, the court **shall** impose a monetary sanction ...in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. CCP § 2025.450(g)(1).

Here, the Court finds that Plaintiffs' notice of deposition and the accompanying request for production of documents are relevant, as the items sought are reasonably calculated to lead to the discovery of admissible evidence. The Court finds that Defendants Counsel did not object to the request for production of documents and had represented that his clients would produce the documents. The records confirms that the parties had met and conferred before this motion was brought. The record also confirms that Defendants did not produce the binder of documents that supported their cross-complaint for damages, but only produced ten pages, with some invoices and checks.

While the production of documents appears to be partially moot, it took a motion for Defendants to comply with the original request that was served on January 11, 2025. Under these circumstances, the Court finds that Defendants is subject to sanctions for failing to produce the documents when requested at the deposition and acted without substantial justification.

Ruling

1. Plaintiff and Cross-Defendant Clayton Valley Shopping Center LLC ("Plaintiff") Motion to Compel Production of Documents from Defendant and Cross-Complainant KNM Clayton LLC ("Defendant" or "KNM") dba "Kick N Mule" and for sanctions in the amount of \$885.00 is **granted**.
2. Defendant shall produce all documents that support their claim for damages as set forth in their cross-complaint no later than ten (10) days from the date of this order, with the exception of those already produced. Further violations or non-compliance with this order may subject Defendant to issue and/or terminating sanctions.
3. Sanctions in the amount of \$885.00 shall be paid by the Defendant to Plaintiff's Counsel no later than ten (10) days from the date of this order.
4. Plaintiff's counsel is ordered to prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling no later than five (5) days from the date of the hearing.

5. 9:00 AM CASE NUMBER: C23-00639

CASE NAME: 4740 APPIAN WAY HOMEOWNERS ASSOCIATION VS. CONTRA COSTA COUNTY
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: CHANG, HOUY CHYUN

TENTATIVE RULING:

This matter is off calendar and this hearing is vacated. Demurring party, Defendant Huoy Chyun Chang, was dismissed from this case without prejudice on December 12, 2025. No appearance is required at the hearing on February 18, 2026.

6. 9:00 AM CASE NUMBER: C23-02578

CASE NAME: DAVID HAMMOND VS. DOES 1 THROUGH 100, INCLUSIVE

*HEARING ON MOTION IN RE: FOR SANCTIONS (PER EX PARTE ORDER GRANTED/FILED 8/25/25)

FILED BY: HAMMOND, DAVID

TENTATIVE RULING:

Summary

Plaintiff David Hammon's Motion for Sanctions for fees and costs in the amount of \$59,391.84 and costs in the amount of \$223.84 against Defendant Tony Geisler ("Defendant" or "Geisler") and his counsel, Dominic Signorotti, is **denied** without prejudice.

Background

On September 19, 2025, Plaintiff David Hammon filed a Motion for Sanctions pursuant to Cal. Code of Civ. Proc § 128.5 against Defendant Tony Geisler or his counsel, Dominic Signorotti, or both of them jointly, in the total amount of \$59,391.84, reflecting the total of the attorney fees (\$59,168.00) and costs (\$223.84) incurred by Plaintiff thus far as a result of Geisler's and Signorotti's sanctionable conduct. The motion is supported by a Memorandum of Points and Authorities, Notice, and a Declarations prepared by Counsel Kevin R. Brodehl and Daniel J. Zarchy. The motion, in essence, claims that Defendant Geisler had engaged in bad faith conduct and filed a legally frivolous answer.

On February 3, 2026, in an opposition filed by Defendant Geisler through Counsel Signorotti, Geisler asserts that Defendant's actions and intervention did not amount to bad faith, but in recognition of a disputed issues of fact that related to whether the public easement and unperfected dedication for hiking and riding purposes could be legally interpreted as encompassing bicycle riding or whether bicycle riding is a permissible change in the use of the easement because that use was within the contemplation of the offeror when the offer of dedication and easement were initially conveyed. (Citing to the ruling denying the Intervenor's Motion for Summary Adjudication in the 2017 Action, and the formal Order filed February 24, 2022 adopting that tentative ruling.) Defendant further claims that Hammond's Complaint names "all persons known and unknown" pursuant to CCP § 762.020, which is sufficient to permit him to file an answer.

Accordingly, Geisler claims that he is are entitled to all the same procedural rights and treatment as any other defendant in the action. In ruling on Hammond's demurrer and motion to strike the Answer, the Court granted Mr. Geisler leave to amend to either file a motion to intervene in the action or allege his basis for filing as a "person unknown" or a "Doe" defendant. Defendant Geisler claims that the Court's ruling in sustaining the demurrer with leave suggests that the Answer was not